

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, Member, and Cons. Fabio
Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018, containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD to the complaint submitted by Mr. XX on September 12, 2021, regularized on October 5, 2021, pursuant to Article 77 of the Regulation, in which a violation of the rules on the protection of personal data by Cooperjob S.p.A. was alleged;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING Prof. Pasquale Stanzione;

PREMISE

1. The initiation of the procedure.

With the complaint submitted to this Authority on September 12, 2021, regularized on October 5, 2021, Mr. XX represented that he had submitted, on August 11, 2021, a request to Cooperjob S.p.A. (hereinafter "the Company") for the deletion of his personal data, provided to the Udine branch as a candidate for job offers. This request was sent to a dedicated email address, but no response was received within the time frame specified in Article 12, paragraph 3, of the Regulation.

With the note of October 21, 2021 (prot. no. 53024), the Office invited the Company to provide observations regarding the complaint and to comply with the requests of the complainant.

The Company, with a note dated November 4, 2021, provided a full response to the complainant's requests, stating that it had identified the presence of the personal data related to the applicant both within the application collection platform available on the website www.cooperjob.eu and within the company management system and had proceeded to delete them.

Furthermore, "in order to improve the management of requests from data subjects, having realized that the management of a single account (info@cooperjob.eu) that channeled multiple and different user requests could be difficult to handle, (...)", a specific mailbox privacy@cooperjob.eu was activated, already indicated in the footer of the website.

For the above reasons, the Office proceeded to notify the Company of the initiation of the sanctioning procedure, pursuant to Article 166, paragraph 5, of the Code in relation to the violation of Articles 12, paragraph 3, and 17 of the Regulation (prot. no. 62568 of December 17, 2021).

The Company, on January 12, 2022, sent its defense writings, pursuant to Article 18 of Law No. 689/1981, providing its observations regarding the described violations, in light of the criteria indicated in Article 83, paragraph 2 of the Regulation.

In particular, it was represented that:

- "the violation refers to the failure to respond to a data subject following his request for deletion of data";
- "the negligent nature of the violation, due to the difficulty in managing a single account that channeled

multiple and different user requests, particularly following the Covid-19 health emergency”;

- “with the note of November 4, 2021, the company provided evidence of the deletion of the data of the data subject [present in the company platform] through (...) screenshots showing the presence of the data before deletion and subsequent screenshots showing the absence of the data after deletion”;
- moreover, with reference to the data of the data subject present in the company management system, evidence of deletion was provided “through screenshots showing the presence of the data before deletion and the subsequent absence of the data once deletion was confirmed”;
- technical and organizational measures have been adopted to prevent the recurrence of similar situations, “by updating the process for managing requests and the related training of the authorized persons involved in the processing”.

2. The outcome of the investigation.

Following the examination of the documentation produced and the statements made by the party during the procedure, it is noted that, unless the fact constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code. It has emerged that the company, in response to the request for the exercise of rights made by the complainant on August 11, 2021, did not provide any response within the time limits set by Article 12, paragraph 3, of the Regulation (“without undue delay and, in any case, no later than one month from the receipt of the request”).

It should also be noted that Article 12, paragraph 4, of the Regulation specifies that in the event that the data controller does not comply with requests for the exercise of rights “the data controller shall inform the data subject without delay and

at the latest within one month from the receipt of the request, the reasons for non-compliance and the possibility of appealing to a supervisory authority and of filing a judicial appeal.” In light of the regulatory framework mentioned above, it has been established that the Company did not provide a timely response to the request for data deletion and that, only following the intervention of the Authority, did it inform the complainant of the personal data in its possession and their deletion from its management systems. The conduct described, for which the Company has provided no justification, is in contrast with the obligation to provide a response “without undue delay” to the data subject and in any case within one month from the receipt of the request pursuant to Article 12 of the Regulation.

3. Conclusions: unlawfulness of the processing carried out. In light of the evaluations that precede, it is noted that the statements made by the data controller in the defense writings – the truthfulness of which may be subject to accountability under Article 168 of the Code – do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for its dismissal, as none of the cases provided for by Article 11 of the Garante Regulation No. 1/2019, concerning internal procedures of the Authority with external relevance, apply.

For the aforementioned reasons, therefore, the complaint submitted pursuant to Article 77 of the Regulation is declared well-founded, and in the exercise of the corrective powers attributed to the Authority pursuant to Article 58, paragraph 2, of the Regulation, an administrative pecuniary sanction is imposed pursuant to Article 83, paragraph 5, of the Regulation.

4. Order of injunction. The Garante, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation, by adopting an order of injunction (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data concerning the complainant, the unlawfulness of which has been established as stated above.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must be “effective, proportionate and dissuasive in each individual case” (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account:

- regarding the nature, severity, and duration of the violation, the nature of the violation concerning the provisions related to the exercise of the rights of the data subjects has been considered relevant;

- the absence of previous relevant violations committed by the data controller;
- the circumstance that the data controller provided a response to the complainant's request during the procedure.

In consideration of the aforementioned principles of effectiveness, proportionality, and dissuasiveness (Article 83, paragraph 1, of the Regulation) to which the Authority must adhere in determining the amount of the sanction, the economic conditions of the offender have been taken into account, determined based on the revenues achieved and referred to the financial statements for the year 2021.

By reason of the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction at €20,000.00 (twenty thousand) for the violation of Articles 12 and 17 of the Regulation. In this context, also considering the type of violation established, which concerned the rights of the data subject, it is deemed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website should proceed.

It is finally noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Garante, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE Garante declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing carried out, as stated in the motivation, for the violation of Articles 12, paragraph 3, and 17 of the Regulation;

ORDERS Cooperjob S.p.A., in the person of the legal representative pro tempore, with registered office in Milan, via Ermanno Barigozzi No. 24, VAT No. 02558070211, pursuant to Article 58, paragraph 2, letter i), of the Regulation, to pay the sum of €20,000.00 (twenty thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

INSTRUCTS the same Company to pay the sum of €20,000.00 (twenty thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981.

It is noted that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011 provided for the filing of the appeal as below indicated.

ORDERS

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Authority No.

1/2019, the publication of this provision on the Authority's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, June 1, 2023

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Stanzione
THE SECRETARY GENERAL
Mattei